TARUVINGA HAMURA
versus
BABRA MATEKO N.O.
and
THE STATE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 4 & 10 February 2026

Application for review

TST Dzvetero, for the applicant
F. Kachidza, for the 2nd respondent

[1] MAMBARA J: This is an application for review of criminal proceedings brought by the applicant, Mr. Taruvinga Hamura, against the first respondent, Mrs. Babra Mateko cited in her official capacity as magistrate, and the second respondent, the State. The applicant is facing trial on a charge of conspiracy to criminally abuse duty as a public officer, in contravention of sections 188 and 174 of the Criminal Law (Codification and Reform) Act Chapter 9:23. The trial is underway at the Harare Magistrates' Court (accused person's case no. ACC 233/20), with the first respondent presiding. The applicant seeks a review of certain decisions and conduct of the first respondent during the course of that trial, alleging that a number of procedural irregularities have violated his right to a fair hearing.

Background

[2] The relevant background may be summarized as follows. The applicant was arraigned in 2020 on the aforementioned charge, which alleges that he conspired with a Ministry of Local Government official one Rejoice Pazvakavambwa to allocate a piece of public land improperly. The trial eventually commenced, and the State adduced evidence from several witnesses in support of its case. At the close of the State's case, the applicant through his legal practitioner applied for his discharge in terms of section 198(3) of the Criminal Procedure and Evidence Act Chapter 9:07 He argued that the State had not established a prima facie case against him warranting him to be put to his defence. On 18 July 2025, the first respondent delivered a ruling dismissing the application for discharge, having found that the State had made out a case requiring the applicant to answer. The applicant was thus placed on his defence.

[3] Following the dismissal of the discharge application, the applicant grew increasingly dissatisfied with the manner in which the trial was being conducted. He raised numerous

complaints about the first respondent's conduct. On 30 August 2025, the applicant even lodged a written complaint with the Chief Magistrate's Office regarding the first respondent's handling of the case. Notwithstanding that pending complaint, the trial before the first respondent continued. In mid-September 2025, the applicant filed a formal application seeking the recusal of the first respondent from the matter, on the basis of perceived bias and various procedural improprieties. The recusal application was heard and, on 23 September 2025, the first respondent dismissed that application. Immediately thereafter, the applicant instituted the present review proceedings in the High Court, on 24 September 2025, as a matter of urgency. It appears that at some point a temporary stay of proceedings was sought; however, ultimately the trial in the magistrates' court resumed while this review was pending, with the applicant's defence case proceeding. As matters now stand, the applicant has begun presenting his defence in the court a quo, before the same magistrate, notwithstanding the issues he raised.

Applicant's Grounds for Review

[4] The applicant's application for review is predicated on several alleged irregularities which he contends have infringed his procedural rights during the trial. In brief, his complaints and grounds for seeking review are as follows:

> "Improper Charge Continuation: The applicant asserts that it was a gross irregularity for the first respondent to insist on continuing the trial on a charge of conspiracy when the only alleged co-conspirator, Ms. Rejoice Pazvakavambwa, had been removed from the prosecution and was no longer facing any charges. The applicant argues that, in the absence of any proven agreement or common purpose with another person, the charge of conspiracy cannot be sustained. He views the continued prosecution under these circumstances as fundamentally unfair and prejudicial.
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> Withholding of Transcripts: The applicant requested the transcribed records of certain key proceedings – in particular, the sessions held on 18 July 2025 (when his discharge application was determined) and on 29 August 2025 – in order to prepare for his defence. To date, he has not been provided with those transcripts. He was advised that the transcripts awaited the magistrate's signature, but no timely signature or release followed. The applicant contends that this failure to furnish him with the record of proceedings violates his rights (including the right "to be furnished with a copy of the record of proceedings" as provided in section 70(4) of the Constitution) and has hampered his ability to adequately prepare his defence. He further perceives the magistrate's delay or refusal to certify the transcripts as an indication of bias against him.
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> Lack of Access to Defence Documents: Upon being called to present his defence, the applicant made specific requests for certain documents and evidence in the State's possession that he deemed essential for his defence. These included, inter alia, documents pertaining to the allocation of the land in question and any communications or records involving the alleged co-conspirator. The applicant submits that despite his requests, and despite several

follow-ups (documented in correspondence attached as Annexure "D"), the requested documents were not availed to him prior to the continuation of the trial. The first respondent is said to have remarked, in substance, that she did not see the necessity of providing the documents at that stage since the applicant "should have requested the same at the beginning of trial". The applicant argues that there is no legal bar to requesting relevant evidence in the course of a trial, especially upon commencement of the defence case, and that the refusal to accommodate his request for documents was a serious procedural irregularity that prejudiced his right to make a full defence.

Failure to Secure Defence Witnesses: In a similar vein, the applicant asked the court to have certain persons summoned as witnesses on his behalf once he was placed on his defence. He identified these individuals as being material to his case. The applicant avers that he was entitled to the issuance of subpoenas through the Clerk of Court to ensure those witnesses' attendance. While the first respondent initially made an order directing the Clerk of Court to assist the applicant in securing the witnesses and documents he needed, the record shows that this directive was not effectively carried out. Indeed, the applicant complains that he never received returns of service for the subpoenas he requested. When the matter was raised in court, the first respondent expressed the view that the court "does not involve itself in the calling of witnesses on behalf of any party" and declined to halt proceedings further to ensure the attendance of the applicant's witnesses. On one occasion, the prosecutor indicated on record that efforts had been made, albeit unsuccessfully, to obtain certain documents and that the Clerk of Court had also attempted to serve the subpoenas without success. The first respondent, however, stated that she had no power to compel the State or the Clerk of Court to take further steps in that regard, and she insisted that the trial move forward. The applicant characterizes this stance as a grave irregularity. In his view, the magistrate ought to have used the court's processes to compel the production of evidence and attendance of witnesses vital to the defence, rather than pressing on with the trial in their absence. By proceeding notwithstanding these outstanding issues, the applicant contends, the court a quo infringed his right to adduce and challenge evidence and ultimately his right to a fair trial."

Apprehension of Bias: Underpinning the above issues is the applicant's broader concern that the first respondent has not been impartial. He points to the cumulative effect of her rulings against him (the dismissal of his discharge application and recusal application, the refusal to grant additional time or accommodations to obtain evidence, etc.), as well as certain remarks attributed to her, as giving rise to a reasonable apprehension that she has prejudged the matter or is otherwise biased. For instance, the applicant alleges that the magistrate displayed a hostile attitude when he sought recourse, to the extent of threatening to issue a warrant for his arrest when he was (according to her) late for a court session during the period he was pursuing the recusal request. In his recusal application, the applicant catalogued what he perceived to be instances of the magistrate's partiality or intemperate conduct. He maintains that any objectively minded observer, apprised of the foregoing facts, would reasonably apprehend that the first respondent will not bring an impartial mind to bear upon the case. It is on this basis that the applicant sought the recusal of the first respondent, which relief, as noted, was refused by her on 23 September 2025.

[5] In light of the above grievances, the applicant approached this Court seeking corrective relief. In essence, he asked the High Court to exercise its review powers to remedy the alleged irregularities and to ensure that his trial is conducted in accordance with the law. The specific relief originally sought by the applicant in his review application included the setting aside of certain rulings made by the first respondent notably the dismissal of the recusal application and the decision to proceed with the trial despite the outstanding evidentiary requests, and ancillary orders to secure his fair trial rights going forward. It is common cause that these alleged irregularities implicate constitutional rights to a fair hearing, particularly the right to adequate facilities to prepare a defence and the right to be tried by an impartial tribunal. The applicant submits that the circumstances of this case are exceptional and warrant the High Court's intervention even before the conclusion of the trial, in order to prevent a miscarriage of justice.

Mootness of the Application

[6] Since the filing of this application, however, events have overtaken the matter. By the time this review was argued before this Court, the trial in the magistrates' court had already resumed and the applicant's defence case was in progress. In other words, despite the applicant's attempt to obtain relief by way of review, the first respondent proceeded with the trial: the applicant has been put to his defence and the magistrate is continuing to hear evidence and submissions in that ongoing trial. This new development has a significant bearing on the present application. The issues raised by the applicant – serious as they are – have been overtaken by the continued proceedings in the court a quo. The relief he initially sought, for example, an order stopping the trial or recusing the magistrate, can no longer be meaningfully granted by this Court at this stage, because the trial has moved forward. In legal parlance, the matter has become moot. A case is moot when a supervening event or change in circumstances means that any decision on the merits will have no practical effect on the parties' rights. Courts exist to resolve live controversies, not to pronounce on abstract or academic points. Here, any ruling by this Court on the alleged irregularities would be academic, given that the trial has effectively progressed past the points which the applicant wanted reviewed.

[7] It is a well-established principle that, where a dispute becomes academic or moot, a court will generally refrain from adjudicating it. This principle applies with particular force to interlocutory or mid-stream challenges in criminal proceedings. The applicant's trial has not yet concluded; should he be aggrieved by the eventual outcome (for instance, if he is

convicted), he will have the normal remedy of appeal or review after judgment, at which stage the higher courts can scrutinize the entirety of the proceedings, including any prejudicial irregularities, and afford appropriate relief. Intervening at this juncture, when the trial is part-heard, risks fragmenting the criminal process and usurping the role of the trial court. In the ordinary run of things, superior courts are loath to interfere in unterminated proceedings of a lower court, except in the most exceptional of circumstances. They will do so *only* if a grave injustice would otherwise result – for example, where the irregularity complained of is so gross that the resultant trial cannot in substance be a fair one, and justice cannot be attained by any other means. This threshold sets a high bar precisely to prevent the disruption of ongoing proceedings. In the present matter, regardless of the applicant's concerns, the fact is that the trial has proceeded and a substantial portion of the defence case may already have been heard. Even if this Court were to find merit in the applicant's complaints, it would be impracticable and inappropriate to set aside the magistrate's interlocutory decisions at this stage. Doing so could necessitate restarting or unduly delaying the trial, contrary to the public interest in the timely administration of justice.

[8] Accordingly, the Court must conclude that the application for review is moot. On this ground alone, the application is liable to be struck off the roll. I would add that the applicant himself, by continuing with his defence in the court below, has effectively acquiesced (albeit under protest) to the trial's progression, which further underscores that the immediate dispute presented for review is no longer live. In ordinary circumstances, that would be the end of the matter: this Court would decline to inquire into the merits of the alleged irregularities and simply dismiss or strike off the application due to mootness. Indeed, the second respondent has urged the Court to take that very course, submitting that the applicant should raise any remaining grievances in a proper appeal after verdict, if necessary.

Supervisory Jurisdiction and Appropriate Relief

[9] The inquiry, however, cannot end with a finding of mootness in the peculiar circumstances of this case. The High Court, as a superior court of record, bears a constitutional responsibility to ensure the proper administration of justice in the courts below. In terms of section 171(1)(b) of the Constitution of Zimbabwe, 2013, this Court *"has jurisdiction to supervise magistrates' courts and other subordinate courts and to review their decisions."* This supervisory jurisdiction empowers the High Court not only to correct irregular decisions on review, but also – where necessary – to issue positive directions to subordinate courts to ensure that justice is done. Even where a formal application has become

moot, the High Court may invoke its inherent and constitutional powers to safeguard fundamental rights and to prevent a substantial miscarriage of justice. In *Blue Ribbon Foods Ltd v Dube N.O. & Anor* [2022] ZWHHC 143, the High Court underscored the breadth of its review powers in supervising lower tribunals, making it clear that the court may issue appropriate remedial orders in the interests of justice, even in situations where conventional relief (such as setting aside a decision) is no longer apt.

[10] I am satisfied that this is an appropriate case for the Court to exercise its supervisory powers to the extent of ensuring that the applicant's ongoing trial is conducted in line with the dictates of fairness. The issues raised by the applicant – particularly regarding his access to evidence and the attendance of witnesses – strike at the heart of his right to a fair trial. Section 69(1) of the Constitution guarantees every accused person the right to a fair and public trial before an independent and impartial court. More specifically, section 70(1)(c) entitles an accused *"to be given adequate time and facilities to prepare a defence"*. The term "facilities" in this context has been understood to include access to documents or information needed for one's defence, as well as the opportunity to secure the attendance of witnesses and to present evidence. Likewise, the right to a fair hearing encompasses the right to call witnesses and to have the means to conduct one's defence without undue handicap. If, as the applicant alleges, he has not been furnished with relevant documents or been able to procure witnesses crucial to his defence, that situation is inimical to a fair trial. This Court cannot simply wash its hands of the matter on the technical ground of mootness and ignore an ongoing potential injustice in the lower court. The constitutional duty to protect fair trial rights, coupled with this Court's plenary powers of review, entitles and indeed obliges the Court to intervene to the minimal extent necessary to ensure that the proceedings below accord with the law.

[11] It is important to emphasize that in taking this step, the High Court is not usurping the function of the trial court nor pronouncing on the applicant's guilt or innocence. The purpose of the following directives is to uphold procedural fairness and to avert a miscarriage of justice. Our law recognizes that even if a particular legal challenge has become academic, a superior court may still make consequential orders in the exercise of its supervisory mandate, especially where fundamental rights or the integrity of the justice system are at stake. In the present case, the Court finds it just and proper to issue tailored directions to the magistrates' court aimed at vindicating the applicant's fair trial rights, without otherwise interfering with the magistrate's role as the finder of fact and arbiter of the case on the merits. This approach

is consistent with the High Court's role as the upper guardian of the law and the rights of accused persons, and it is bolstered by the constitutional provision mentioned above (s 171(1)(b)).

[12] In view of the foregoing, while the application for review will be struck off the roll for mootness, the following supervisory orders are warranted. These directives seek to ensure that, before the trial continues to its completion, the applicant is placed in a position to fully and fairly present his defence. They address the specific deficiencies alleged by the applicant, namely the lack of access to certain documents and the absence of certain witnesses. I am mindful that some efforts have already been made at the lower court to remedy these issues; however, to avoid any doubt or further delay, clear instructions from this Court are appropriate.

Disposition

[13] In the result, the application is struck off the roll on the ground that it has been rendered moot by reason of the resumption of the trial. Nevertheless, in exercise of its review and supervisory jurisdiction in terms of section 171(1)(b) of the Constitution and the inherent powers of this Court, the High Court issues the following directive to the court a quo and the parties, which is to be complied with forthwith:

1. The applicant shall be furnished with all documents or records in the prosecution's possession that he has reasonably requested and that are necessary for the preparation and presentation of his defence in Case No. ACC 233/20.
2. In the event that any such requested document cannot be provided, the second respondent (the State) must cause the unavailability of that document to be formally recorded on the trial record, accompanied by an explanation of the reasons for its unavailability. The trial magistrate shall ensure that any such explanation is noted in the record of proceedings.
3. The Clerk of Court at Harare Magistrates' Court is hereby directed to issue and serve subpoenas for all witnesses that the applicant has identified as being required for his defence. The applicant shall promptly furnish the Clerk of Court with the names and contact details of any remaining defence witnesses (if not already provided), and the Clerk of Court shall take all necessary steps to secure the attendance of those individuals at the trial.
4. The trial before the first respondent shall not resume (and no verdict shall be rendered) until the directives in paragraphs 1, 2 and 3 above have been carried out. In

particular, the trial court must satisfy itself that the applicant has either been supplied with the relevant documents he requested or has been informed on the record why any cannot be supplied, and that the applicant's intended defence witnesses have been duly subpoenaed and given an opportunity to attend court (to the extent that they are traceable and available to testify). Only once these measures have been implemented may the magistrate proceed to hear the remainder of the defence case.

MAMBARA J…….

Antonio &Dzvetero, applicant's legal practitioners
National Prosecuting Authority, respondents' legal practitioners